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Case Number: 25SMCV03201 Hearing Date: July 22, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly Hills Courthouse | Department 205

LESTER WINOGRADE,

Plaintiff,

v.

VENICE RENAISSANCE HOMEOWNERS ASSOCIATION, et al.,

Defendants.

Case No.: 25SMCV03201

Hearing Date: 07/22/26

Trial Date: None

[TENTATIVE] RULING RE:

DEMURRER WITH MOTION TO STRIKE

Background

In this negligence and breach of warranty of habitability action, Plaintiff Lester Winograde ("Plaintiff") sues Venice Renaissance Homeowners Association ("VR HOA"), Venice Renaissance, LLC, Trilliant Property Management, Condominium Administration Company, Inc. ("CAC"), Philip Kamins, and Does 1 through 20, inclusive, alleging that defendants failed to (among other things) properly investigate water damage that had intruded in the condominium Plaintiff was renting, causing mold to grow in and around the condominium and severely impact Plaintiff's health.

On June 20, 2025, Plaintiff filed the operative Complaint against the defendants, asserting causes of action for: (1) negligence, (2) private nuisance, (3) breach of implied warranty of habitability, and (4) breach of implied covenant of peaceful and quiet enjoyment.

On June 16, 2026, VR HOA and CAC (collectively, "Defendants") filed the instant demurrer to the first and second causes of action, arguing that those claims are barred by the statute of limitations, are uncertain, and fail to state facts sufficient to constitute causes of action. Defendants also filed a motion to strike portions of the Complaint.

On July 9, 2026, Plaintiff filed oppositions to the demurrer and motion to strike.

On July 15, 2026, Defendants filed their replies.

Legal Standard

A. Demurrer

A defendant may demur a complaint on the ground that "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10(e).) The defects must be apparent on the face of the pleading or via proper judicial notice.² (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)³ "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) The court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

B. Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Request for Judicial Notice

Defendants request for judicial notice of the original Complaint filed in a prior case, 24SMCV03093, brought by Plaintiff against VR HOA, Venice Renaissance, LLC, and Does 1 through 20, inclusive, asserting causes of action for: (1) negligence and (2) private nuisance. (Request for Judicial Notice, filed May 8, 2026, p. 1:22-28.)

The request for judicial notice is granted. (See Evid. Code, § 452, subd. (d) [allowing a court to take judicial notice of court records]; but see also *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files” (italics removed)].)

Meet and Confer

The Court finds that Defendants have satisfied the meet and confer requirement. (Demurrer, Declaration of Michael D. Attar, ¶¶ 2, 3; Motion to Strike, Attar Decl., ¶¶ 2, 3.)

Timeliness

Plaintiff argues that the demurrer and motion to strike are untimely, and Defendants dispute that argument in their replies.

Even if it is true, as Plaintiff argues, that the demurrer and motion are untimely, the Court exercises its discretion to rule on them on their merits where Plaintiff has not shown he was prejudiced by the late filing (e.g., he had already moved for default before the demurrer was filed). (See *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750 [discussing case law holding that a trial court has the discretion to consider a late filing as long as doing so does not affect the substantial rights of the parties, and finding that in that case (*Jackson*), an untimely demurrer “did not affect plaintiff’s ‘substantial rights,’ where plaintiff did not take steps to obtain a default judgment or demonstrate the delay prejudiced her”].)

Demurrer

Defendants make several arguments in their demurrer to the Complaint’s first cause of action for negligence and second cause of action for private nuisance in the Complaint. The Court addresses them in the order they appear in the demurrer.

A. Whether Plaintiff has Alleged Facts Supporting Imposition of Duty Against Defendants

Defendants first argue that Plaintiff’s negligence claim fails because VR HOA does not owe a cognizable duty to a tenant of one of its members/owners. (Demurrer, pp. 4:27-5:6.)

In opposition, Plaintiff argues: “Defendants’ central premise, that Plaintiff is a tenant rather than an Association member and therefore is owed no duty, is not a pleading defect but a false legal premise. Under California law, everyone is responsible for injury caused by a want of ordinary care in the management of property. Civ. Code, 1714, subd. (a); *Rowland v. Christian* (1968) 69 Cal.2d 108, 112 [“*Rowland*”].” (Demurrer Opposition, p. 5:11-13.)

Plaintiff then argues: “*Frances T. v. Village Green Owners Association* (1986) 42 Cal.3d 490 [“*Frances T*”] forecloses Defendants’ premise directly. There, the association argued that it was not a traditional landlord and owed no duty for common-area conditions. The Supreme Court disagreed, holding that a condominium association is, for all practical purposes, the project’s landlord as to the common areas under its control and owes residents a duty of due care for their safety. That duty arose from control and foreseeability, not from privity or membership status. *Id.* at pp. 499-500. Defendants cite no case holding that the same resident-safety duty disappears because the injured resident leases rather than owns his unit.” (Demurrer Opposition, p. 5:18-25.)

In their reply, Defendants argue that Frances T is distinguishable because, in that case, the plaintiff was a unit owner (not a tenant) and, in that opinion, the California Supreme Court did not “address or establish a direct duty running to a non-owner tenant who has no ownership interest and no contractual relationship with the Association. The Frances T Court did not hold or find that the Association is the equivalent of a guarantor with respect to a tenant leasing a unit as to the habitability of the unit where the Association has no control over the interior of the premises.” (Demurrer Reply, p. 3:18-23.)

The Court finds Defendants' arguments regarding duty unpersuasive for the following reasons.

There is no blanket duty exemption for HOAs and their property management companies just because of the way those entities are structured. Indeed, in Frances T, the Supreme Court rejected a homeowner association's arguments that it did not owe the unit owner a duty simply because “it is not a landlord in the traditional sense, but a nonprofit association of homeowners.” (Frances T., supra, 42 Cal.3d at p. 499.) The Supreme Court held that “regardless of [the] self-imposed constraints [in the association's covenants, conditions and restrictions (CC&Rs)], the Association [was], for all practical purposes, [the condominium's] ‘landlord.’ And traditional tort principles impose on landlords, no less than on homeowner associations that function as a landlord in maintaining the common areas of a large condominium complex, a duty to exercise due care for the residents' safety in those areas under their control.” (Ibid. [footnote removed; emphasis added].) As noted by this Court's emphasis, the Supreme Court did not limit the HOA's duty to “owners,” but used a broad word, “resident.” In any event, the Supreme Court “disagree[d] that an unincorporated association has no existence apart from that of its members.” (Id. fn. 6.) “Constitutional and common law protections do not lose their potency merely because familiar functions are organized into more complex or privatized arrangements. [Citations.] Similarly, a homeowner's association and its board may not enforce provisions of the CC & Rs in a way that violates statutory or common law.” (Ibid.)

Rather, “[w]hen the duty question concerns ‘the management of [a defendant's] property or person,’ courts look to Civil Code section 1714. [Citation.] Per Civil Code section 1714, everyone owes everyone else a duty to exercise ordinary care ‘in the management of his or her property or person.’ Accordingly, the existence of a duty is the rule.” (Lichtman v. Siemens Industry Inc. (2017) 16 Cal.App.5th 914, 920 (Lichtman).)

“Unless there is a statutory exception to the general rule of duty, courts fashion one only ‘where “clearly supported by public policy.”’ [Citation.]” (Lichtman, supra, 16 Cal.App.5th at p. 921.)

In Rowland, supra, 69 Cal.2d 108, “our Supreme Court identified the public policy considerations that may result in a court's conclusion that no duty exists: ‘[1] [T]he foreseeability of harm to the plaintiff, [2] the degree of certainty that the plaintiff suffered injury, [3] the closeness of the connection between the defendant's conduct and the injury suffered, [4] the moral blame attached to the defendant's conduct, [5] the policy of preventing future harm, [6] the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and [7] the availability, cost, and prevalence of insurance for the risk involved.’ [Citation.]” (Lichtman, supra, 16 Cal.App.5th at p. 921.)

Therefore, Defendants, regardless of their organizational structure, had a duty to exercise ordinary care in their management of themselves and areas within their control.

The only way Defendants can be exempted from the statutory, general rule of duty would be if public policy considerations under the Rowland factors warrant a finding that duty should not be imposed on them.

Here, Defendants currently have no basis to support their implied argument that public policy warrants granting them an exception to the general rule of duty because their moving and reply papers neither discussed nor considered the Rowland factors.

Therefore, the only way Defendants can prevail on their duty argument is if the Complaint failed to allege facts showing that they owed Plaintiff a general duty of care regarding inspecting and remediating the areas that had mold and injured Plaintiff.

Here, the Court finds that the Complaint has failed to allege facts showing that Defendants owed Plaintiff a general duty of care because the Complaint fails to specifically allege that (or, at a minimum, is uncertain regarding whether) Defendants controlled the areas in which Plaintiff claims were inhabitable. The Complaint only alleges: the condominium is governed by the VR HOA (Compl., ¶ 9); in June 2023, Plaintiff discovered that VR HOA had remediated upstairs condominium units that were affected by water leaking in the building in 2019 (id. ¶ 17); the condominium owners told Plaintiff they would contact VR HOA and their management company regarding Plaintiff's suspicions that toxic mold had grown in the condo's walls during the 2019 building water leaks (id. ¶ 19); CAC responded to the condo's owners stating that it did not know about mold in the walls of the condo (id. ¶ 20); CAC and VR HOA finally did their own testing for mold in Plaintiff's unit in on October 2023 and stated that they needed to remediate the walls behind the master bath and master closet as soon as possible (id. ¶ 22); but CAC and VR HOA never fulfilled their promise to remediate the mold (id. ¶ 23). Plaintiff then alleges that VR HOA and CAC owed Plaintiff "a duty of care to Plaintiff to exercise reasonable skill in the ownership and management of the building where Plaintiff's unit is located and of Plaintiff's unit so as to avoid injury to Plaintiff. Defendants further owed a duty of care to Plaintiff to provide and maintain conditions at the building where Plaintiff lived which were decent, safe, sanitary, and in compliance with applicable state law and local codes. Defendants owed a duty to Plaintiff, in Plaintiff's capacity as persons on the property, occupant, resident and tenant, to exercise care in the ownership and management of the property so as not to cause harm to Plaintiff." (id. ¶ 58.) However, nowhere does the Complaint specifically allege that VR HOA and CAC controlled the area where the alleged toxins from mold emanated and injured Plaintiff. This is unlike *Frances T* where "it [was] beyond dispute that the Association, rather than the unit owners, controlled the maintenance of the common areas [at issue in that case]." (*Frances T.*, supra, 42 Cal.3d at p. 502.)

Therefore, the demurrer to the first cause of action for negligence, on the ground that it is uncertain or fails to state facts sufficient to support the element of duty against Defendants, is SUSTAINED with leave to amend.

B. Whether Plaintiff has Alleged Facts Sufficient to Constitute Private Nuisance

Defendants also demur the second cause of action for private nuisance, arguing: "Plaintiff is asserting its claim against the Association and its manager, who did not hold a duty under the Civil Code to Plaintiff. The present cause of action seems more suited to be brought against Plaintiff's landlord, the Kamins, as it is unclear how Plaintiff's tenancy at the property, without Association involvement in that tenancy, affords Plaintiff the legal theory to support the second cause of action. Plaintiff's second cause of action for private nuisance as against Defendants Association and CAC is thus subject to demurrer and motion to strike." (Demurrer, p. 5:7-15.)

Private nuisance is "a nontrespassory interference with the private use and enjoyment of land." (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937.)

The Supreme Court has set out the elements of an action for private nuisance as follows. "First, the plaintiff must prove an interference with its use and enjoyment of its property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage. Third, the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land." (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176 [italics removed].)

Defendants have not cited (and the Court has not found) any law holding that duty is an element of a private nuisance claim. Indeed, "[s]o long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance." [Citation.] [Citation.] An interference need not directly damage the land or prevent its use to constitute a nuisance; private plaintiffs have successfully maintained nuisance actions against airports for interferences caused by noise, smoke and vibrations from flights over their homes [citations] and against a sewage treatment plant for interference caused by noxious odors [citation]." (*Koll-Irvine Center Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041.)

However, cases have suggested that a defendant must have control over the instrumentality that caused the nuisance. (See e.g., *Dauberman v. Grant* (1926) 198 Cal. 586, 591 ["Defendant does not deny, as the evidence shows and as the trial court

found, that rainwater from the roof of his shed was precipitated upon the land beneath, thereby rendering the same excessively soggy and muddy during the rainy season of the year, but insists that the discharge of water from the roof is a mere incident to urban life, and he cannot, therefore he held responsible for the maintenance of a nuisance in this particular. Although the owner of a building may not be charged with the duty of keeping, at all events and under all circumstances, the rainwater falling upon and flowing from his building from flowing on to adjacent land, he is under a duty to use at least ordinary and reasonable means to prevent the use of his property from interfering with the use and enjoyment of his neighbor's property; and the absence of any effort on his part to obviate the annoyance and discomfort caused by the precipitation of rainwater from his building upon the neighboring property creates a situation which constitutes a nuisance"].)

As discussed earlier, Plaintiff has not alleged that Defendants had control over the areas where the toxicity from mold allegedly emanated and injured Plaintiff.

Therefore, the demurrer to the second cause of action for nuisance on the ground that it fails to state facts sufficient to constitute a cause of action is SUSTAINED with leave to amend.

C. Whether Statute of Limitations Bars Plaintiff's Negligence and Private Nuisance Claims

Defendants also demur the negligence and private nuisance claims on the ground that they are barred by the statute of limitations because the Complaint shows that Plaintiff had actual knowledge of the water leak issue as of January 16, 2019.

"The statute of limitations is a ground for objection to a complaint ... and, therefore, may be raised in a demurrer." (Cavey v. Tualla (2021) 69 Cal.App.5th 310, 325.)

"The limitations period for a cause of action for ordinary negligence is two years. ([Code Civ. Proc.] §§ 335, 335.1.)" (So v. Shin (2013) 212 Cal.App.4th 652, 662.) "A nuisance claim alleging damage to real property is subject to the three-year limitation provided by [Code of Civil Procedure] section 338, subdivision (b)." (Shamsian v. Atlantic Richfield Co. (2003) 107 Cal.App.4th 967, 979.)

However, "[a] demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred." [Citations.] It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred. [Citations.] This will not be the case unless the complaint alleges every fact which the defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]' [Citation.]" (Leasequip, Inc. v. Dapeer (2002) 103 Cal.App.4th 394, 400.)

Here, the Court finds that the facts alleged in the Complaint do not show that the Complaint is necessarily barred by the statute of limitations for negligence and nuisance claims. The Complaint alleges that Plaintiff conclusively knew for the first time that the January 2019 water damage leaked into the condo he was renting on or after October 11, 2023, after the owners tested the unit with a professional mold testing company and revealed water damage, presence of mold, and need for remediation. (Compl., ¶ 16 [the paragraph was erroneously numbered as another number "16" instead of 21]; ¶ 21.) A "demurrer is treated as admitting all material facts properly pleaded" (Cavey v. Tualla (2021) 69 Cal.App.5th 310, 326.) Admitting those facts as true, neither the two-year or three-year statutes of limitations bar Plaintiff's claims because he filed this lawsuit on June 20, 2025, within two years of the alleged discovery on or after October 11, 2023.

Therefore, the demurrer on the ground of statute of limitations is OVERRULED.

D. Other Demurrer Arguments

Defendants also demur the Complaint on the ground that it fails to apprise each defendant of the basis upon which Plaintiff is seeking relief and fails to allege facts sufficient to support the request for punitive damages.

The Court finds that in light of its rulings above, sustaining with leave to amend the demurrer to the first and second causes of action, the Court need not address the other demurrer arguments at this time.

Motion to Strike

Defendants' motion to strike is DENIED as moot in light of the Court's ruling above sustaining with leave to amend the demurrer to the first and second causes of action.

Conclusion

Based on the foregoing, the Demurrer is SUSTAINED IN PART as follows. The demurrer to the first cause of action for negligence and second cause of action for private nuisance, on the ground that they are uncertain and/or fail to state facts sufficient to constitute a cause of action, is SUSTAINED with leave to amend. The demurrer is otherwise OVERRULED.

The Motion to Strike is DENIED as moot.

Plaintiff is ordered to file and serve his First Amended Complaint within 20 days of this ruling.

Moving parties to give notice.

Dated: July 22, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court